

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Craig Anderson	Team: Squad #07	CCRB Case #: 201504616	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 05/26/2015 3:01 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/26/2016	Precinct: 75
Date/Time CV Reported Tue, 05/26/2015 4:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/08/2015 11:49 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jay Rivera	03882	935599	075 PCT
2. POM Kyle Stanley	03809	941148	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jay Rivera	Discourtesy: PO Jay Rivera spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Jay Rivera	Force: PO Jay Rivera used physical force against § 87(2)(b)	B . Exonerated
C . POM Kyle Stanley	Force: PO Kyle Stanley used pepper spray against § 87(2)(b)	C . Exonerated
D . POM Jay Rivera	Force: PO Jay Rivera used pepper spray against § 87(2)(b)	D . Exonerated
E . POM Kyle Stanley	Force: PO Kyle Stanley struck § 87(2)(b) with an asp.	E . Exonerated

Case Summary

On May 26, 2015 at approximately 3:01 p.m., § 87(2)(b) informed PO Jay Rivera and PO Kyle Stanley of the 75th Precinct that two men – later identified as § 87(2)(b) and § 87(2)(b) – § 87(2)(b)

§ 87(2)(b) The officers responded to that location. PO Stanley told § 87(2)(b) to get out of the van, and he complied. PO Rivera told § 87(2)(b) to get out. § 87(2)(b) asked several times why he had to get out. PO Rivera allegedly said, “Get out the fucking car now” and “Just get out the fucking car” (**Allegation A**). PO Rivera allegedly grabbed § 87(2)(b) by the shoulder and pulled him out of the car, causing § 87(2)(b) to fall on the ground and land on broken glass (**Allegation B**). A struggle ensued, during which both PO Stanley and PO Rivera used pepper spray and PO Stanley struck § 87(2)(b) s limbs with his asp (**Allegations C, D, and E**). The officers stated that § 87(2)(b) was apprehended after he attempted to jump over a fence and impaled himself on the top. § 87(2)(b) denied that this occurred. While the officers struggled with § 87(2)(b) § 87(2)(b) got in the van and drove away. Emergency Services, additional NYPD officers, and an FDNY ambulance responded to the scene. § 87(2)(b) was taken to § 87(2)(b), § 87(2)(a) PHL § 87(2)(b) § 87(2)(b) was arrested and charged with several misdemeanors (see Board Review 01). § 87(2)(b) s van was stopped by other officers and he was arrested (see Board Review 02).

A security camera on § 87(2)(b) s house captured video of most of this incident (see Board Review 03 for a summary and Board Review 04, 05, and 06 for the video. See the links below for Snagit versions of the video).



§ 87(2)(b) snagit 1.mp4



§ 87(2)(b) snagit 2.mp4

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to the severity of § 87(2)(b) s injuries.
- § 87(2)(b) filed a notice of claim with the Comptroller’s office on § 87(2)(b) requesting one million dollars in damages (see Board Review 07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b)
§ 87(2)(b)

- PO Rivera has been a member of the NYPD for eleven years and there are 22 complaints against him containing 52 allegations. In case 201305267, allegations of a stop, threat of summons, and refusal to provide name and shield number were substantiated. PO Rivera received command discipline. Several of PO Rivera's prior complaints include allegations of force and discourtesy.
- PO Stanley has been a member of the NYPD for nine years and there are 19 CCRB complaints against him containing 53 allegations. In case 200800947, a search allegation was substantiated and he received command discipline. In 201001696, a stop allegation was substantiated and he received command discipline. In 201305267 – in which PO Rivera was also a subject officer – allegations of a stop and refusal to provide name and shield number were substantiated. Case 201208002 included a pepper spray allegation, which was unsubstantiated.

Findings and Recommendations

Explanation of Subject Officer Identification

- In his interview, § 87(2)(b) provided vague descriptions of the officers that were insufficiently detailed to differentiate between PO Rivera and PO Stanley. However, both officers said that PO Stanley initially interacted with § 87(2)(b) and PO Rivera initially interacted with § 87(2)(b) § 87(2)(g)
- § 87(2)(b) said only one officer pepper sprayed him, but PO Stanley and PO Rivera said they both pepper sprayed § 87(2)(b) § 87(2)(g)
- § 87(2)(b) said that the officer who hit him with the asp was the same officer who spoke discourteously to him and pulled him out of the car, which was determined to be PO Rivera. However, PO Stanley and PO Rivera both said that PO Stanley was the one to hit § 87(2)(b) with an asp. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A – Discourtesy: PO Jay Rivera spoke discourteously to § 87(2)(b)

Allegation B – Force: PO Jay Rivera used physical force against § 87(2)(b)

§ 87(2)(b) said that he asked PO Rivera several times why he had to get out of the van. PO Rivera allegedly responded by saying, “Get out the fucking car now” and “Just get out the

fucking car.” PO Rivera then allegedly opened the front passenger door, grabbed § 87(2)(b) by the shoulder and pulled him out of the van, causing him to fall on the ground and land on broken glass, which caused the puncture wounds in § 87(2)(b) s groin area § 87(2)(b) (see Board Review 10).

§ 87(2)(b) said the officers told them to get out of the van and § 87(2)(b) refused. He did not mention any obscenities being used by the officers. He said the officers pepper sprayed him while he was still inside the van, pulled him out through the window, and immediately pinned him to the ground. § 87(2)(b) got in the van and drove away shortly after this (see Board Review 11).

PO Rivera said that, when they arrived at the van, § 87(2)(b) (see Board Review 12). The officers decided to remove the men from the van. § 87(2)(b) complied with PO Stanley’s orders, but § 87(2)(b) refused PO Rivera’s commands. PO Rivera went in the driver’s door and told § 87(2)(b) to get out. He denied using any obscenities while doing this. § 87(2)(b) walked to the front of the van and exited via the front passenger door. § 87(2)(b) did not resist inside the van, and PO Rivera did not use force to make him exit. § 87(2)(g) . Both officers said that § 87(2)(b) did not fall to the ground when he left the van.

The video footage does not show the inside of the van due to glare on the windshield. § 87(2)(g) stepped out of the van himself and did not fall to the ground at any time during the ensuing struggle. After he stepped out of the van, the officers pushed him against the police car and he began resisting (see Board Review 03, 04, 05, and 06).

Officers must use the minimum force necessary to effect an arrest. Patrol Guide, Section 203-11 (see Board Review 14).

§ 87(2)(g) . It is therefore recommended that **Allegation A be unsubstantiated.**

§ 87(2)(g) . It is recommended that **Allegation B be exonerated.**

Allegation C – Force: PO Kyle Stanley used pepper spray against § 87(2)(b)

Allegation D – Force: PO Jay Rivera used pepper spray against § 87(2)(b)

It is undisputed that the officers used pepper spray during this incident. § 87(2)(b) alleged that, after he fell on the ground, PO Rivera pinned him down. PO Stanley then approached him, held a can of mace five inches from his face, and sprayed him for three to four seconds. § 87(2)(b) believed the officers sprayed § 87(2)(b) while he was still inside the van, refusing to get out.

PO Stanley said that § 87(2)(b) began heavily resisting after he was out of the van. They tried to wrestle him to the ground, but were unable to do so. PO Stanley sprayed him once in the face from about three feet away. PO Rivera also sprayed him one time in the face. The pepper spray had no effect on § 87(2)(b)'s behavior.

PO Rivera § 87(2)(g) saying that § 87(2)(b) flailed his arms and tried to flee. PO Rivera tried to grab § 87(2)(b) but was unable to hold him, so he sprayed him one time with pepper spray from about six inches away. This had no effect on § 87(2)(b)'s behavior.

The video shows that § 87(2)(b) heavily resisted arrest by thrashing his body about, pulling away from the officers' grips, and running away. The use of pepper spray is difficult to see in the video.

Officers may use pepper spray to “establish physical control of a subject resisting arrest” or “attempting to flee from arrest.” They are directed to hold the canister a minimum of three feet from the target’s face. Patrol Guide, Section 212-95 (see Board Review 15).

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§ 87(2)(g). It is recommended that **Allegation C and D be exonerated.**

Allegation E – Force: PO Kyle Stanley struck § 87(2)(b) with an asp.

§ 87(2)(b) alleged that, as PO Rivera had him pinned to the ground, PO Rivera used his left hand to extend § 87(2)(b)'s left arm, which had already been handcuffed. PO Rivera then used his right arm to strike § 87(2)(b) on the handcuff six times with an asp. Most of the strikes hit the handcuff, causing it to tighten and break § 87(2)(b)'s left wrist.

§ 87(2)(b) said it looked like the officers “beat § 87(2)(b)'s ass,” but he was unable to describe this in any detail because he drove away as it occurred.

As noted previously, the investigation determined that PO Stanley used an asp – not PO Rivera. Both officers stated that, during their struggle with § 87(2)(b) he broke away from them and fled toward a metal fence. § 87(2)(b) tried to hop the fence – which had a thirty-foot drop on the other side – but impaled himself on the steel spikes at the top. The fence was old and rusty, and § 87(2)(b) started shaking his body, apparently trying to knock the fence down. As he did this, PO Stanley said he struck § 87(2)(b) on his arms and the backs of his legs “a few” times. Neither officer could estimate the number of strikes more specifically. PO Rivera said he tried to handcuff § 87(2)(b) while he was on the fence. He cuffed one of his hands but was unable to cuff the other until additional officers arrived a few minutes later. PO Rivera sustained scrapes on his hand during the struggle, which are documented in an injury report (see Board Review 16). He was not sure exactly how the scrapes resulted. PO Stanley § 87(2)(g)

§ 87(2)(g) saying that PO Rivera put one cuff on as they held § 87(2)(b) against the car at the beginning of the struggle.

The unusual occurrence report gave an account of the handcuffing § 87(2)(g). It said that they handcuffed his left hand early on in the struggle. When § 87(2)(b) impaled himself on the fence, the officers worried that he would fall over the thirty-foot drop, so they handcuffed his left hand to the fence (see Board Review 17).

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

§ 87(2)(b)'s security video does not show § 87(2)(b) being pinned on the ground, as he alleged he was when he was struck with the asp, at any time. At one point, § 87(2)(b) fled out of camera-view with the officers in pursuit. Roughly one dozen additional officers responded within a few minutes, and they congregated near the area where § 87(2)(b) went out of camera-view. § 87(2)(b) eventually reappeared from that side of the video and was put on a stretcher.

Officers must use the minimum force necessary to effect an arrest. Patrol Guide, Section 203-11 (see Board Review 14).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) A Google Streetview image shows a metal fence in what appears to the area that § 87(2)(b) fled toward (see Board Review 18). § 87(2)(g)

§ 87(2)(g)

_____. It is recommended that **Allegation E be exonerated.**

Pod: 7

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date